

AI Act Compliance Fitphone

Minor AI for Society

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Version Information

Project Name : Fitphone

Version : Prototype

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Purpose of this Document

This document assesses the Fitphone system against the requirements of Regulation (EU) 2024/1689 (Artificial Intelligence Act).

The purpose of this assessment is to:

- Determine whether Fitphone qualifies as an AI system under the AI Act.
- Identify which articles and annexes of the AI Act are applicable.
- Assess whether the system is prohibited or high-risk.
- Define the resulting risk classification and its obligations.

The AI Act is a risk-based regulation. Therefore, only provisions relevant to the system's intended purpose and risk level are assessed in detail.

System Description

Fitphone is a digital wellbeing application designed to help users better understand and manage their smartphone usage habits.

The system collects and analyzes behavioral usage information generated through interactions with a mobile device. Based on identified patterns, the system provides insights, predictions, and recommendations/nudges intended to support healthier device usage habits.

The system is designed as a support tool that assists users in understanding their behavior and does not make decisions on behalf of users.

Intended Purpose

The primary purpose of Fitphone is to:

- Monitor smartphone usage behavior.
- Identify behavioral usage patterns.
- Predict future usage trends.
- Enhance digital wellbeing by providing personalized advice.
- Raise awareness among users regarding smartphone habits.

The system is intended exclusively for personal use and self-reflection.

The system is not intended for:

- Employee monitoring.
- Educational assessment.
- Healthcare diagnosis.
- Creditworthiness assessment.
- Legal decision-making.
- Government or law-enforcement purposes.

System Functionality

Input Data

The system processes the following categories of behavioral information:

- Screen time per application.
- Application launch frequency.
- Application usage duration.
- Device unlock events.
- Device pickup frequency.
- Time of day.
- Day of week.

Please note that no biometric data is being collected or processed.

System Outputs

The system generates outputs including:

- Usage summaries.
- Behavioral trend analyses.
- Predicted usage patterns.
- Personalized recommendations.
- Digital wellbeing nudges.

Examples include:

- Notifications indicating increased device usage.
- Suggestions to reduce distractions.
- Insights regarding daily routines.
- Predictions regarding future application usage.

AI Functionality

Current Functionality

The current functionality includes:

- Usage trend detection.
- User insight generation.
- Behavioral pattern analysis.
- Statistical aggregation of smartphone activity.
- Predicting likely future app usage.
- generating personalized recommendations based on historical behavior.

Future Functionality

Future versions of the system may be able to:

- Detect patterns of recurrent distraction.
- Recognize periods of increased smartphone usage.

All recommendations provided by the app are always intended as optional guidance.

AI Act Assessment

The AI Act establishes a risk-based regulatory framework, meaning that different legal obligations apply depending on the nature and risk level of an AI system.

To support this assessment, the [EU AI Act Compliance Checker](#), was used as an indicative tool to identify potentially relevant provisions.

This assessment focuses only on provisions relevant to determining:

- Whether the system qualifies as an AI system (Article 3).
- Whether the system is prohibited (Article 5).
- Whether the system is deployed (Article 4).
- Whether the system is high-risk (Annex III, Chapter III).

Other provisions, such as conformity assessment obligations for high-risk systems, are not applicable because Fitphone does not fall into that category.

Article 3 - Definition of AI System

Article 3(1) defines an AI system as a machine-based system that operates with varying levels of autonomy and generates outputs such as predictions or recommendations. When it comes to Fitphone, it generates:

- Behavioral predictions.
- Usage pattern analysis.
- Recommendations and nudges.

It can therefore be characterized as an AI system according to Article 3(1).

Article 4 – AI Literacy (Testing Context)

Article 4 requires providers and deployer of AI systems to ensure an appropriate level of AI literacy among persons involved in the operation or use of the system.

Fitphone is likely to be tested in the future with a group of students in a controlled environment. Participants will be informed about:

- The AI-driven nature of predictions and recommendations
- The probabilistic and non-deterministic nature of outputs
- The advisory (non-binding) nature of system recommendations
- The possibility of inaccurate or incomplete predictions

These measures ensure an appropriate level of awareness of system capabilities and limitations within the testing context.

Article 5 - Prohibited AI Practices

Article 5 defines AI practices that are prohibited due to unacceptable risk. Fitphone has been assessed against these prohibitions and:

- Does not use subliminal or manipulative techniques.
- Does not exploit vulnerabilities of individuals or groups.
- Does not perform social scoring.
- Does not perform biometric identification or categorization.
- Does not use deceptive behavioral manipulation.

All nudges and recommendations are provided in a way that it is clear to the user and it always gives the user full control to apply or dismiss suggestions.

Conclusion: Fitphone does not practice any prohibited AI practices under Article 5.

Annex III – High-Risk AI Systems

Annex III defines specific use cases considered high-risk due to their impact on safety, rights, or access to essential services. To determine whether Fitphone is high-risk, the system was evaluated against the following criteria:

- Use in regulated high-impact domains.
- Production of legally or similarly significant effects.
- Influence on access to essential services or opportunities.

Fitphone does not meet these criteria, as the system is not used for:

- Employment or worker management
- Education or academic evaluation
- Healthcare diagnosis or treatment
- Credit scoring or financial assessment
- Law enforcement or judicial decision-making
- Migration or border control processes
- Access to essential services

Additionally:

- The system does not produce legally binding decisions
- The system does not restrict access to services or opportunities
- The system does not affect eligibility for rights or benefits

Instead, Fitphone is limited to personal digital wellbeing analysis and voluntary user insights. Therefore it can be concluded that Fitphone is not a high-risk AI system under Annex III.

Risk Classification

Based on the assessment of the assessment of various articles and Annex II, it is supported that Fitphone is classified as a limited-risk AI System under the AI Act. The system provides predictions and recommendations but does not operate in high-risk domains or engage in prohibited AI practices.

Transparency Measures

In accordance with Article 50, the system ensures transparency through:

- Informing users when AI is used to generate insights or recommendations
- Clearly marking recommendations as suggestions, not instructions
- Communicating the purpose of predictions and nudges
- Presenting outputs in an understandable form where possible

These measures ensure users are aware of AI involvement in system outputs.

Human Oversight

Human oversight is maintained at all times.

The system:

- Does not autonomously make decisions
- Does not enforce behavioral changes
- Does not restrict or block applications
- Does not modify device settings automatically

Users retain full control over all decisions and may ignore or disable recommendations at any time.

Risk Assessment

Risk	Likelihood	Impact	Mitigation
Incorrect usage prediction	Medium	Low	Outputs remain advisory
Misclassification of distraction periods	Medium	Low	Recommendations are optional
Sleep inference inaccuracies	Medium	Low	Sleep data treated as estimates
Overreliance on recommendations	Low	Medium	No enforcement mechanisms
Excessive nudging	Medium	Low	User can disable notifications

Technical Limitations

The system has several limitations:

- Predictions are probabilistic, not deterministic
- Model accuracy depends on available historical data
- Irregular user behavior reduces prediction reliability
- Sleep inference is approximate unless explicitly provided
- Recommendation quality may vary across users

Outputs should be interpreted as informational guidance rather than factual determinations.

Conclusion

Fitphone is an AI-enabled digital wellbeing system that analyses smartphone usage behavior and generates predictions and recommendations.

The system qualifies as an AI system under Article 3(1) of Regulation (EU) 2024/1689.

It does not involve prohibited AI practices under Article 5 and does not fall within any high-risk category defined in Annex III.

The system is therefore classified as a Limited-Risk AI System, subject primarily to transparency obligations under Article 50.

Appropriate safeguards, including human oversight and user awareness measures in line with Article 4, have been implemented to ensure responsible and transparent use.

References

- EU AI Act Compliance Checker | EU Artificial Intelligence Act. (z.d.). <https://artificialintelligenceact.eu/assessment/eu-ai-act-compliance-checker/>
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